

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JUNE 25, 2026, AT 8:30 A.M.

action. (*Center for Self-Improvement & Community Development v. Lennar Corp.* (2009) 173 Cal.App.4th 1543, 1552.) The court therefore declines to consider the opposition papers as they relate to plaintiff Therapeutic Herbal Company, LLC.

Ruling on Motion

Defendant contends that plaintiff Therapeutic Herbal Company, LLC has engaged in discovery and motion practice despite the Franchise Tax Board suspending its corporate status. However, Code of Civil Procedure section 128.5 does not apply to discovery misuse. And, defendant does not identify any motion that plaintiff Therapeutic Herbal Company, LLC filed whereby defendant thereafter complied with Code of Civil Procedure section 128.5's 21-day safe harbor provision. Finally, defendant does not identify any specific misuses of the discovery process to justify Code of Civil Procedure sections 2023.010 and 2023.030 sanctions. Accordingly, defendant's motion is denied.

8. S-CV-0048670 CAL. ED. FUND v. CAL. PREPARATORY ACAD.

The motion to appoint receiver is dropped from calendar as the court granted the motion on April 24, 2026, after the hearing was advanced by ex parte order.

9. S-CV-0048766 BRANDT, MARGUERITE v. DIAMOND K ESTATES

The motion for summary judgment is dropped from calendar in light of the full dismissal with prejudiced filed with the court on April 28, 2026.

10. S-CV-0051202 KHACHADOURIAN, GILBERT v. COOK, RICHARD

Defendants Richard Noah Cook and Mary Melody Cook's Motion to Quash
Deposition Subpoena for Personal Appearance and Production of Documents and
Things Directed to Bob Eynck

Preliminary Matters

The court agrees to consider Jeffrey Ochrach's declaration filed in response to defendants' reply brief.